

SENATE BILL 1765

By Pody

AN ACT to amend Tennessee Code Annotated, Title 40,
relative to sentencing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-311, is amended by deleting subdivision (d)(2).

SECTION 2. Tennessee Code Annotated, Section 40-35-311, is amended by deleting subdivisions (e)(1) and (2) and substituting:

(1) If the trial judge finds by a preponderance of the evidence that the defendant has violated the conditions of probation and suspension of sentence for a felony or misdemeanor offense by engaging in conduct that is a technical violation, then the trial judge may temporarily revoke the probation and suspension of sentence by an order duly entered upon the minutes of the court, and:

(A) Impose a term of incarceration not to exceed:

- (i) Ninety (90) days for a first revocation;
- (ii) One hundred eighty (180) days for a second revocation; or
- (iii) The remainder of the sentence for a third or subsequent

revocation; or

(B) Resentence the defendant for the remainder of the unexpired term to a sentence of probation that includes the condition of participating in a community-based alternative to incarceration as provided in § 40-35-104(c)(9); provided, that the violation of probation and suspension is a technical violation and does not involve the commission of a new offense.

(2) If the trial judge revokes a defendant's probation and suspension of sentence after finding, by a preponderance of the evidence, that the defendant has committed a new felony, new Class A misdemeanor, zero tolerance violation as defined by the department of correction community supervision sanction matrix, violation of a specialized condition of probation imposed by the court, absconding, or contacting the defendant's victim in violation of a condition of probation, then the trial judge may revoke the probation and suspension of sentence by an order duly entered upon the minutes of the court, and cause the defendant to commence the execution of the judgment as originally entered, which may be reduced by an amount of time not to exceed the amount of time the defendant has successfully served on probation and suspension of sentence prior to the violation.

SECTION 3. Tennessee Code Annotated, Section 40-35-311(g), is amended by deleting the subsection and substituting:

(g) As used in this section, "technical violation" means an act that violates the terms or conditions of probation but does not constitute a new felony, new Class A misdemeanor, zero tolerance violation as defined by the department of correction community supervision sanction matrix, violation of a specialized condition of probation imposed by the court, absconding, or contacting the defendant's victim in violation of a condition of probation.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.